

SENATE No. 1272

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to public safety, fiscal responsibility, and emergency assistance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/13/2025</i>
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	<i>5/30/2025</i>

SENATE No. 1272

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1272) of Bruce E. Tarr for legislation relative to public safety, fiscal responsibility and the emergency housing assistance program. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to public safety, fiscal responsibility, and emergency assistance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 276 of the General Laws is hereby amended by inserting after
2 section 20R the following section:-

3 Section 20S. (a) Any employee of the Commonwealth, or a public instrumentality or
4 political subdivision thereof, who holds police powers or the powers of a sheriff or deputy
5 sheriff, including but not limited to municipal police officers, court officers, and state troopers,
6 and who has lawful custody of a person may, upon receipt of (1) a written request from United
7 States Immigration and Customs Enforcement requesting detention of such person on the
8 grounds that there is probable cause that such person is a removable alien and (2) an
9 administrative warrant for arrest or warrant of removal/deportation, detain such person for a
10 reasonable period of time after such person would otherwise be released from custody in order to
11 transfer custody of such person to United States Immigration and Customs Enforcement,
12 provided that a supervisory officer of such employee's agency has, in accordance with a policy

promulgated in accordance with subsection (c), first determined that there are specific facts indicating that the person to be detained poses a threat to public safety; and further provided that such person be provided with a copy of such written request; and further provided that in no circumstances shall such detention exceed 12 hours unless an appropriate judicial officer shall have made a probable cause determination under the procedure set forth in subsection (d).

(b) As used in subsection (a), “specific facts indicating that the person to be detained poses a threat to public safety” shall mean that, at a minimum, any of the following facts are true with respect to such person:

(1) the person has engaged in or is suspected of terrorism or espionage, or otherwise poses a danger to national security;

(2) the person has been convicted of an offense of which an element was active participation in a criminal street gang, as defined in 18 U.S.C. § 521(a);

(3) the person has been convicted of an offense classified as a felony, other than a state or local offense for which an essential element was the person’s immigration status;

(4) the person has been convicted of an aggravated felony, as defined under 8 U.S.C. § 1101(a)(43); or

(5) the person has been convicted of a crime of (i) domestic violence; (ii) sexual abuse or exploitation; (iii) trafficking in persons in violation of sections 50 or 51 of chapter 265 or like violations of the law of another state, the United States or a military, territorial or Indian tribal authority; (iv) burglary; (v) unlawful possession or use of a firearm; (vi) drug distribution or

trafficking; (vii) second or subsequent operating or driving under the influence; or (viii) any other offense for which the person has been sentenced to time in custody of 180 days or more.

(c) Each agency of the Commonwealth or any public instrumentality or political subdivision of the Commonwealth that chooses to allow its employees to exercise the authority granted by subsection (a) shall promulgate a written policy designating which supervisory officers may make the determination required by subsection (a) before a person is detained and the criteria such supervisory officer shall use in making such determination.

(d) A determination of probable cause for detention shall be made by an appropriate judicial officer and promptly reduced to writing. The appropriate judicial officer shall consider any information presented by the detaining agency, whether or not known at the time of initial detention. The detaining agency shall present the information under oath or affirmation or under the pains and penalties of perjury, and may present the information orally, in person or by any other means, or in writing. If presented in writing, the information may be transmitted to the appropriate judicial officer by facsimile transmission or by electronic mail or by such other electronic means as may be found acceptable by the court. The determination of probable cause for detention shall be an ex parte proceeding. The person detained shall have no right to appear, either in person or by counsel. If the judicial officer determines that there is not probable cause to believe the person detained is a removable alien, then the judicial officer shall order that the person be released forthwith. Such a determination and order shall be filed in the District Court having jurisdiction over the location of the detention, together with all written information submitted by the detaining agency. Such documents shall be filed separately from the records of criminal cases, and shall be open for inspection by the public. If a determination under this subsection is necessary, the detaining agency shall present the information necessary to obtain

such determination to the appropriate judicial officer as soon as reasonably possible after the detention begins, but no later than 12 hours after the detention begins.

(e) This section shall not be construed to give rise to a private right of action and shall not be construed so as to make unlawful any arrest in this commonwealth which would otherwise be lawful.

SECTION 2. Notwithstanding any general or special law to the contrary, any funds expended for the purpose of providing services through or related to those served by the emergency housing assistance program shall be subject to a competitive bidding process.

SECTION 3. Section 30 of Chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following paragraph after the first paragraph:-

(a) Notwithstanding any general or special law, rule, or regulation to the contrary, eligibility for the emergency housing assistance program shall be limited to (1) United States citizens and (2) lawfully present immigrants who have maintained continuous legal residency in the Commonwealth of Massachusetts for at least 12 consecutive months immediately prior to the date of application.

(b) Acceptable proof of legal residency must consist of the following two forms of documentation, both issued at least 12 months before the application date:

Proof of U.S. Citizenship or Lawful Permanent Residency: (1) A valid U.S. Passport with a Massachusetts address; (2) A certified U.S. Birth Certificate with proof of Massachusetts

residency; (3) A valid Certificate of Naturalization or Citizenship; (4) A valid Green Card (Permanent Resident Card) issued at least one year prior.

Proof of Continuous Residency in Massachusetts: (1) Filed Massachusetts state income tax return for the most recent tax year r; (2) Valid REAL ID-compliant Massachusetts driver's license issued at least one year prior; (3) Utility bill, lease, or mortgage statement in the applicant's name, dated at least one year prior; Or (4) pay stubs showing continuous Massachusetts employment for at least one year.

(d) All submitted documentation shall be subject to verification by the Executive Office of Housing and Livable Communities in coordination with the Department of Revenue and the Registry of Motor Vehicles. Any attempt to submit fraudulent documents will result in permanent disqualification from the program.

(e) The Executive Office of Housing and Livable Communities shall promulgate regulations to enforce this residency requirement, including procedures for cross-agency verification and fraud detection.

(f) For purposes of this section, a residency requirement shall not be required for victims of domestic violence; or a person whose living situation has been affected by a fire or other natural disaster that occurred in Massachusetts.

SECTION 4. Section 30 of Chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting at the end thereof the following paragraph:-

"Notwithstanding any general or special law to the contrary, no individual convicted or charged with a violent felony or a sexual offense pursuant to chapter 265 of the General Laws, as

so appearing, while receiving benefits pursuant to this chapter shall be eligible to continue to receive such benefits absent a written waiver issued by the secretary of the executive office of housing and livable communities."

SECTION 5. The office of the inspector general, shall, subject to appropriation, convene a special unit for the purpose of providing ongoing and comprehensive oversight of actions taken by the commonwealth in response to the ongoing crisis attributable to the influx of migrants into the state. Such a special unit shall identify, review, and analyze the cost and cost-effectiveness of specialized contracts and procurements, and payments for such resources as food, and housing, healthcare, education, and legal services.

Said unit shall file reports, together with legislative and regulatory recommendations, with the clerks of the House and Senate, the Senate and House Committees on Ways and Means, and the Secretary of Administration and Finance quarterly, beginning not later than 3 months following the passage of this act, for a period of not less than 3 years, unless otherwise such requirement is otherwise modified, terminated, or extended, provided that such reports shall also be posted electronically so as to enable public inspection.

SECTION 6. Section 5 shall expire 3 years after the passage of this act.

SECTION 7. Section 30 of Chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following paragraph after the first paragraph:-

The executive office shall prioritize access to emergency shelter assistance for the following groups: (1) Veterans as defined by section 1 of chapter 115; (2) elderly persons as defined in section 14 of chapter 19A; (3) families with legal residence in the Commonwealth

who are homeless or at risk of homelessness, as defined by regulations promulgated by the executive office; (4) victims of domestic violence; or (5) a person whose living situation has been affected by a fire or other natural disaster that occurred in Massachusetts.

SECTION 8. Paragraph (G) of section 30 of chapter 23B of the General Laws, as most recently amended by section 3 of chapter 88 of the Acts of 2024, is hereby amended by striking out subparagraph (3) and inserting in place thereof the following paragraph:-

(3) A family with children or a pregnant woman with no other children that receives benefits through the emergency housing assistance program shall, subject to appropriation and rules and regulations, remain eligible for the program for not more than 6 consecutive months.

SECTION 9. (a) For purposes of this Act “Background Check” shall be defined as a “a comprehensive review of an individual’s personal, criminal, and financial history, including but not limited to: criminal records at the state, federal, and international levels; employment history; education verification; immigration or residency status; financial history, including credit checks; presence on international or domestic criminal watch lists.”

(b) The background check shall be conducted by an approved and licensed entity that complies with federal, state, and local laws governing background investigations, including but not limited to the United States Fair Credit Reporting Act.

(c) The required background check shall include, but is not limited to: criminal history review, including state, national, and international records; verification of employment and education history; immigration and residency status verification through the Department of Homeland Security or its equivalent; review of financial history, including creditworthiness, if applicable to program eligibility criteria; social security number verification and identification

141 validation; and, screening against state and federal sex offender registries and other public safety
142 databases.

143 (d) Law enforcement agencies accessing data under this provision shall adhere to all
144 applicable state and federal privacy and data protection laws.

145 (e) Individuals with criminal convictions related to violent crimes, sexual offenses, fraud,
146 or other serious offenses committed within the past 10 years may be deemed ineligible for
147 housing program participation, subject to review by the administering agency.

148 (f) All information obtained through the background check process and data access under
149 this Act shall be kept confidential and used solely for the purposes provided in this Act.

150 (g) Administering agencies and law enforcement must establish secure systems for the
151 storage and handling of sensitive information.

152 (h) Background check and data access procedures under this Act shall comply with all
153 applicable state and federal privacy laws, including but not limited to the General Data
154 Protection Regulation (GDPR) for international applicants.

155 (i) Any agency or entity administering housing programs or managing data found in
156 violation of this Act shall be subject to penalties, including fines, suspension of funding, or other
157 sanctions as determined by the Executive Office of Housing and Livable Communities or other
158 applicable authorities.